

Opinion of the Court

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SUPREME COURT OF THE UNITED STATES

No. 26–5

MRBIGTANKS05, PETITIONER *v.* UNITED STATESON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT
COURT FOR THE DISTRICT OF COLUMBIA

[May 31, 2026]

JUSTICE SAICHARI delivered the opinion of the Court.

On February 16th, 2026, the United States filed a homicide and reckless driving charge against the Petitioner. The Petitioner was granted a public defender by the District Court. Trial scheduling began on March 26th and the trial itself commenced on March 30th. During trial, Petitioner's appointed counsel raised no objections, indicated an intention to cross-examine following the Government's case-in-chief, but failed to do so. After a period of inaction by counsel, the District Court deemed cross-examination waived. During closing argument, the Government referenced alleged threats made by Petitioner against the Court and its officers. On April 4th, Petitioner was found guilty.

A petition for a writ of certiorari was filed with this court on April 17th, 2026, and was granted by this court on April 23rd, 2026. We granted review to consider: (1) Whether Petitioner was denied the effective assistance of counsel guaranteed by the Sixth Amendment where defense counsel failed to meaningfully subject the Government's case to adversarial testing. (2) Whether the District Court properly deemed cross-examination waived following counsel's inaction during Discord criminal proceedings. (3) Whether the prosecutor's references to Petitioner's alleged

Opinion of the Court

threats against the Court deprived Petitioner of due process.

We hold that defense counsel's deficient performance during the evidentiary stage deprived Petitioner of the effective assistance of counsel guaranteed by the Sixth Amendment. We further hold that cross-examination was not knowingly waived, although counsel's continued inaction forfeited the opportunity to conduct it after the District Court gave counsel notice and a reasonable chance to proceed. The District Court's characterization of counsel's failure as waiver was imprecise; the more accurate term is forfeiture. That imprecision does not independently require vacatur, but the same conduct reinforces our conclusion that counsel failed to provide effective assistance. Because counsel's ineffective assistance requires vacatur of Petitioner's conviction, we decline to reach Petitioner's remaining due process challenge.

I

Petitioner argues that appointed counsel failed to meaningfully test the Government's case through objection, cross-examination, or presentation of evidence. The United States responds that counsel remained present throughout the proceedings, participated in trial, and therefore cannot be said to have abandoned Petitioner's defense. The Court agrees that this case does not present the complete absence of counsel.

Claims of ineffective assistance are ordinarily governed by *Strickland v. Washington*, 466 U. S. 668 (1984), which asks whether counsel's performance "fell below an objective standard of reasonableness," *id.*, at 688, and whether "there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different," *id.*, at 694. The inquiry is deferential, and courts should not lightly convert ordinary strategy into constitutional error. Alas, deference to strategy

Opinion of the Court

presupposes the existence of a strategy. Such deference does not require a court to invent a tactical judgment where the record instead reflects inattention, delay, or failure to participate in the portions of trial where adversarial testing occurs. See *Wiggins v. Smith*, 539 U. S. 510, 526–528 (2003) (deference is withheld when counsel fails to conduct the threshold investigation necessary to make an informed strategic choice).

Petitioner’s original counsel participated in portions of the proceedings, communicated with the District Court, and addressed the evidence presented at trial. This is uncontested. The question before us is not whether counsel appeared but whether counsel provided the meaningful adversarial representation required by the Sixth Amendment and the fair administration of criminal proceedings.

In *United States v. Cronin*, 466 U. S. 648 (1984), the Court recognized a narrow category of cases in which prejudice may be presumed, including where “counsel entirely fails to subject the prosecution’s case to meaningful adversarial testing.” *Id.*, at 659. But *Cronin* does not convert every failure of advocacy into presumed prejudice. In *Bell v. Cone*, 535 U. S. 685 (2002), the Court clarified that, “[w]hen we spoke in *Cronin* of the possibility of presuming prejudice based on an attorney’s failure to test the prosecutor’s case, we indicated that the attorney’s failure must be complete.” *Id.*, at 697. Failures at specific points in the proceeding remain subject to *Strickland*’s ordinary performance-and-prejudice framework. See *Florida v. Nixon*, 543 U. S. 175, 189–190 (2004); *Roe v. Flores-Ortega*, 528 U. S. 470, 482 (2000).

The conviction depended substantially upon testimony that was never subjected to the crucible of cross-examination. During the presentation of that testimony, counsel raised no objections to the Government’s questioning. Counsel introduced no evidence, did not test the witness’s perception, credibility, or account of the

Opinion of the Court

events giving rise to the conviction, and counsel did not conduct cross-examination. The result was that the Government's factual theory proceeded through trial without meaningful adversarial challenge at the evidentiary stage. The record reflects multiple occasions on which counsel could have challenged the Government's presentation of the evidence, sought clarification of disputed factual assertions, or otherwise required the Government's theory of the case to withstand adversarial scrutiny. Counsel did not do so. Instead, the Government's account proceeded substantially unchallenged from direct examination through the close of its case.

That failure cannot be justified as ordinary strategy. Counsel did not expressly waive cross-examination or indicate that cross-examination was unnecessary. To the contrary, counsel indicated an intention to proceed with cross-examination following the Government's case-in-chief and later informed the District Court that he would be ready to proceed. Those representations are inconsistent with a tactical decision to forgo cross-examination. The failure that followed therefore does not appear as a reasoned exercise of professional judgment, but as inattention, delay, or procedural confusion. See *Kimmelman v. Morrison*, 477 U. S. 365, 385 (1986) (total failure to conduct standard pre-trial discovery cannot be minimized as a "strategic" choice).

Counsel's later statement concerning the evidence does not cure that failure. Argument is not cross-examination. A statement addressing the sufficiency of the evidence after the witness has been excused does not test the witness's account, expose inconsistencies, clarify ambiguity, or require the Government's proof to withstand adversarial scrutiny. Cross-examination has long been recognized as the "greatest legal engine ever invented for the discovery of truth." 5 J. Wigmore, *Evidence* §1367, p. 32 (J. Chadbourn rev. 1974); see also *Davis v. Alaska*, 415 U. S. 308, 316 (1974). Cross-examination is the means by which testimony

Opinion of the Court

is actively tested; closing argument is merely a retrospective characterization of testimony already admitted. Counsel's attempt to argue the evidence therefore confirms his physical participation, but it fails to establish effective representation.

Nor do we hold today that every failure to object or every decision not to cross-examine constitutes ineffective assistance per se. Counsel retains broad discretion over trial management, and many decisions concerning objections, questioning, and presentation of evidence are properly left to counsel's judgment. See *Harrington v. Richter*, 562 U. S. 86, 105 (2011). But the record here does not reflect an isolated, defensible tactical decision. It reflects the near-total absence of meaningful evidentiary testing: no objections, no cross-examination, no defense evidence, and no serious adversarial challenge to the Government's principal witness. Taken together, those compounding failures fell below the standard of competent representation required in a criminal proceeding under the first prong of *Strickland*.

Prejudice is also established. The United States argues that Petitioner can only speculate as to what objections or cross-examination might have accomplished. But the absolute absence of adversarial testing is precisely what prevents a fuller record from existing. The conviction depended entirely upon testimony that was never subjected to the crucible of cross-examination.

To satisfy *Strickland*'s second prong, a defendant need not show that counsel's deficient conduct more likely than not altered the outcome; he must demonstrate only a "probability sufficient to undermine confidence in the outcome." *Strickland*, 466 U. S., at 694. That standard is satisfied here. Meaningful cross-examination could have tested the witness's perception of the events, the rapid sequence of the encounter, the commands allegedly given to Petitioner, the basis for identifying Petitioner's conduct as

Opinion of the Court

flight, and whether the Government's evidence actually established the charged offenses.

Where the Government's case turns substantially upon testimony that was never subjected to cross-examination, and counsel fails to deploy the primary constitutional tool designed to test credibility, there is at least a reasonable probability sufficient to undermine confidence in the outcome. *Strickland*, 466 U. S., at 694. Accordingly, counsel's performance was deficient under *Strickland*, and Petitioner was prejudiced by that deficiency. The Court therefore holds that Petitioner was denied the effective assistance of counsel.

II

Petitioner next argues that the District Court improperly deemed cross-examination waived following counsel's inaction during the proceedings. The United States responds that trial courts possess broad authority to manage proceedings and impose reasonable deadlines, and that counsel's failure to timely proceed justified moving the case forward. This Court does not contest that reality. Trial courts possess inherent authority to manage proceedings and control their dockets with "economy of time and effort." *Landis v. North American Co.*, 299 U. S. 248, 254 (1936). Counsel also ordinarily controls matters of scheduling and trial management. See *New York v. Hill*, 528 U. S. 110, 114–115 (2000).

But waiver and forfeiture are distinct. "Whereas forfeiture is the failure to make the timely assertion of a right, waiver is the intentional relinquishment or abandonment of a known right." *United States v. Olano*, 507 U. S. 725, 733 (1993) (internal quotation marks omitted); see also *Johnson v. Zerbst*, 304 U. S. 458, 464 (1938). The record before us does not show waiver. Counsel never stated that cross-examination would not occur, never represented that cross-examination was unnecessary, and never affirmatively abandoned the opportunity to examine

Opinion of the Court

the Government's witness. To the contrary, counsel earlier indicated an intention to proceed with cross-examination.

The record does, however, reflect forfeiture. The District Court gave counsel time to prepare for cross-examination, prompted counsel to proceed, acknowledged counsel's representation that he would soon be ready, and later warned that continued inaction would be treated as the loss of the opportunity to cross-examine. Counsel then failed to conduct cross-examination. Instead, counsel attempted to argue the sufficiency of the evidence, was corrected by the District Court, and stated that he had no witnesses. At that point, the District Court was permitted to move the case forward.

This conclusion does not treat cross-examination as a trivial right. The right to confront and cross-examine adverse witnesses is fundamental. See *Brookhart v. Janis*, 384 U. S. 1, 3–8 (1966). Nor does the Court hold that a trial court may disregard that right merely for convenience. But confrontation rights, like other trial rights, remain subject to reasonable procedural rules governing the time and manner of their exercise, so long as the defendant is afforded a meaningful opportunity to cross-examine adverse witnesses. See *Melendez-Diaz v. Massachusetts*, 557 U. S. 305, 314 n.3 (2009). A defendant cannot obtain indefinite suspension of trial because counsel fails to timely proceed.

The District Court's error was therefore one of characterization. A statement that the defense has no witnesses is not itself a waiver of cross-examination. Nor does counsel's improper merits statement establish intentional relinquishment. But after repeated prompts and continued failure to proceed, the District Court was not required to suspend the trial indefinitely. The result is better understood as forfeiture, not waiver.

Accordingly, the Court holds that cross-examination was not knowingly waived. On this record, however, counsel's failure to timely proceed permitted the District Court to

Opinion of the Court

move the case forward. That conclusion does not save the conviction, because the same conduct forms part of counsel's deficient performance under Strickland. It only clarifies that the District Court's case-management authority was not itself the source of vacatur.

III

Petitioner finally argues that the Government deprived him of due process by referencing alleged threats made against the Court and its officers during closing argument. The United States responds that the challenged remarks were supported by the record and constituted fair comment on the evidence.

Because the Court vacates Petitioner's conviction on the grounds discussed above, resolution of this claim is unnecessary to the disposition of this case. Courts do not ordinarily decide constitutional questions where a case may be resolved on narrower grounds. See *Ashwander v. TVA*, 297 U. S. 288, 347 (1936) (Brandeis, J., concurring).

We therefore decline to reach Petitioner's remaining due process challenge.

IV

Defense counsel failed to provide the meaningful adversarial representation required by the Sixth Amendment, and Petitioner was consequently denied the effective assistance of counsel guaranteed by Strickland v. Washington. The District Court erred in characterizing counsel's failure to proceed as waiver, though it retained authority to move the proceedings forward after counsel failed to timely exercise the opportunity to cross-examine. Because Petitioner's conviction must be vacated on ineffective assistance grounds, we decline to reach Petitioner's remaining due process challenge.

The judgment of the District Court is vacated, and the case is remanded for further proceedings consistent with this opinion.

Cite as: 1 U. S. ____ (2025)

9

Opinion of the Court

It is so ordered.